

Forensic Evaluation and Restitutionary Brief

Ty Mawr (Great House Farm), Llandough
Semantic Version 0.6

This brief is submitted to invite judicial, parliamentary, and public scrutiny of the historical dispossession of Ty Mawr (Great House Farm), Llandough, and to set out grounds upon which the matter should be reopened, investigated, and remedied. It does not seek to pre-empt findings of fact, but to identify material anomalies, procedural omissions, and unresolved questions which, taken together, render the historic outcome unsafe.

Ty Mawr was occupied continuously by the Williams family from 1667 following post-medieval settlement under former Herbert overlordship. Occupation was open, exclusive, and continuous for more than three centuries. In the early twentieth century, Mary Williams, the last Williams heir, married Frederick Buckler. The family remained in occupation, and Mary Williams retained her maiden name, consistent with local custom and with the family's understanding that the Williams lineage embodied the historic basis of title and possession.

In 1870, the Williams family reported the discovery of a Roman soldier beneath the farmhouse. This demonstrated that the site was of archaeological significance. The record is silent as to whether this fact was ever formally assessed or disclosed during later proceedings, despite its relevance to ownership, statutory protection, and development.

In 1974, Mary Williams initiated proceedings to assert ownership and possession of Ty Mawr. These proceedings were adjourned and later effectively quashed without any determination of ownership. Ownership was the only issue capable of conclusively resolving possession, succession, and heritage status. The avoidance of that determination requires explanation.

During subsequent proceedings, BP asserted title but did not obtain a judicial determination of ownership. Instead, a licence arrangement was relied upon, issued retrospectively and attached to a substituted legal description referring to "Mrs Buckler" rather than Mary Williams. The factual and legal basis for this substitution was never tested.

In *BP Properties Ltd v Buckler* (1987), possession was determined without adjudicating ownership. Following this, the 800-year-old farmhouse was demolished. Only after demolition was the site excavated and recorded as the largest burial ground uncovered in Wales. The sequence of events raises serious questions as to whether material facts were excluded from consideration.

Appeals were dismissed, access to supranational remedies was obstructed, and no public inquiry has examined the combined effect of procedural avoidance, substituted identity, heritage omission, and irreversible consequence.

The principle affirmed in *Takhar v Gracefield Developments Ltd* recognises that fraud, if established, unravels all. This brief does not assert findings of fraud, but identifies prima facie grounds requiring investigation.

The relief sought prioritises declaratory and narrative justice: determination of ownership, correction of the historic record, and recognition of the Williams–Buckler family as successors in title and possession. Only thereafter can compensation, preliminarily quantified at approximately £101.2 million, be properly assessed.

If ownership was never adjudicated, and ownership was essential to lawfully determine possession, development, and heritage status, the basis upon which Ty Mawr was extinguished must now be examined.